

C. The FAA Governs

Mercedes argues that, based on both the terms of the agreement, as well as the interstate nature of its business, the FAA governs. Plaintiff does not disagree on this point. The application of federal law does not have the effect sought in the opposition, however. Plaintiff suggests that, because federal law governs, the Court should follow *Ngo v. BMW of N. Am., LLC* (9th Cir. 2022) 23 F.4th 942, a case from the Ninth Circuit that, like *Felisilda*, pre-dates the California Supreme Court's decision in *Ford Motor Warranty Cases*, *supra*. In *Ngo*, the agreement containing an arbitration provision did *not* name the manufacturer as an intended third-party beneficiary so the case has little persuasive value here.

On the other hand, it is worth noting that if the FAA applies, as agreed by parties here, it would preempt any statutory exceptions to arbitration. So, to the extent that is what plaintiff seeks to establish in asserting the claims arise not from the leave, but from Mercedes' "statutory obligations under the Song-Beverly Act," (Opposition, 11:25) the argument fails to defeat the motion.

D. Enforceability / Delegation

Defendant argues the issue of enforceability has been delegated to the arbitrator. (Memorandum of Points and Authorities in Support of Motion, 14:13-15:15.) Plaintiff does not respond on this issue. Defendant does not quote the entirety of the paragraph containing what Mercedes contends is a delegation clause. To the extent that one exists, it is buried in a run-on sentence that the Court has reviewed and found not to be "clear and unmistakable."

The default rule is that the court engages in the enforceability analysis unless parties have "clearly and unmistakably" delegated such issues to the arbitrator. (See *Chin v. Advanced Fresh Concepts Franchise Corp.* (2011) 194 Cal.App.4th 704, 709.) Accordingly, if any separate enforceability defense had been raised, it would be the Court's to analyze. Plaintiff raises *no* real enforceability defense aside from claiming that Mercedes is not a third-party beneficiary, which has been addressed above. Accordingly, the motion must be granted.

9. 9:00 AM CASE NUMBER: C25-03386

CASE NAME: CECILY TAYLOR VS. STEVE SMITH

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT IMPOSE MONETARY SANCTIONS OF UP TO \$1,000 ON PLAINTIFF CECILY TAYLOR FOR SUBMITTING NON-EXISTENT, FALSE LEGAL AUTHORITY TO THE COURT & MISREPRESENTING THE HOLDINGS AND CONTENT OF EXISTING LEGAL AUTHORITY TO THE COURT.(PER TR ON 4/10/26)

FILED BY: TAYLOR, CECILY

TENTATIVE RULING:

The Court did not receive any response from Plaintiff regarding the Order Show Cause Issued in its ruling on April 10, 2026.

On its own motion the court will **continue this hearing to Friday June 12, 2026 at 9:00 a.m.**

and will separately re-issue and serve the OSC on Plaintiff and all parties.

10. 9:00 AM CASE NUMBER: C25-03801

CASE NAME: LUKE KEARNEY VS. SELENE FINANCE LP

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: SELENE FINANCE LP

TENTATIVE RULING:

The hearing on Defendant Selene Finance LP's Demurrer to the Complaint is dropped as moot. Plaintiffs filed a First Amended Complaint on April 27, 2026.

11. 9:00 AM CASE NUMBER: C26-00262

CASE NAME: NIDAH NASRALLA VS. MERCEDES BENZ USA, LLC,

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: MERCEDES BENZ USA, LLC,

TENTATIVE RULING:

Defendant, Mercedes-Benz USA, LLC ("defendant" or "Mercedes"), moves the Court under both the California Arbitration Act and the Federal Arbitration Act to compel plaintiff to arbitrate the claims set forth in plaintiff's complaint, and to stay this action pending the outcome of arbitration.

The motion is **granted**. Parties shall submit the matter to arbitration. This proceeding is hereby stayed. **The Court maintains the case management conference on November 2, 2026, at 8:30 a.m.** for a status update on arbitration. All parties are ordered to file an updated Case Management Conference statement 15 days in advance of the conference reporting on the status of the arbitration. (The parties may choose to file a joint statement in this regard.)

Background

Plaintiff Nidah Mohamed Nasralla brought suit on January 23, 2026, alleging that on or about July 31, 2023, plaintiff leased a 2023 Mercedes-Benz C3 and the vehicle had electrical system defects. (See Complaint, ¶¶6, 9, 12.) The complaint asserts four causes of action under the Song-Beverly Act: (1) breach of Civil Code § 1793.2(d); (2) breach of Civil Code § 1793.2(b); (3) breach of Civil Code § 1793.2(a)(3); and (4) breach of the implied warranty of merchantability.

In response to the complaint, defendant filed this motion to compel arbitration based on provisions found in the Motor Vehicle Lease Agreement plaintiff signed with Mercedes Benz of Walnut Creek, the dealer from which plaintiff leased the vehicle. In support of its motion, defendant provides a declaration from counsel that attaches plaintiff's complaint as well as a signed copy of the lease agreement.

The arbitration agreement contained in the lease agreement states, under "Important